

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 39-014
Unlawful Burning

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for criminal offenses and desires to amend those rules and regulations.

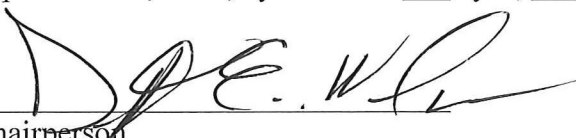
NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 17, Chapter 3, Article A, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through, and omissions with deletions of substance are signified by “* * *”):

SECTION 17-301.5 **UNLAWFUL BURNING.**

A. It is unlawful for any person subject to the Chickasaw Nation’s jurisdiction to set fire to any forest, grass, range, crop or other wildlands, or to build a campfire or bonfire, or to burn trash or other material that may cause a forest, grass, range, crop or other wildlands fire within the Chickasaw reservation during a period in which the Governor of the Chickasaw Nation has issued an emergency declaration prohibiting burning.

B. Unlawful Burning shall be punishable by a fine not exceeding one thousand dollars (\$1,000) or imprisonment not exceeding one (1) year, or both such fine and imprisonment.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on September 16, 2022, by a vote of 9 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: SEP 20 2022

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Explanation:

This resolution creates a new criminal offense of Unlawful Burning.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature